

24STLC05701 24STLC05701

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-09-17

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Case Number: 24STLC05701 Hearing Date: September 17, 2026 Dept: 25

HEARING DATE: Thurs., September 17, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Tenna

v. Ramones COMP.

FILED: 08-07-24

CASE NUMBER: 24STLC05701

NOTICE: OK

PROCEEDINGS: MOTION

TO VACATE ORDER OF DISMISSAL

MOVING PARTY: Plaintiff Messeret Tenna

RESP. PARTY: None

MOTION TO VACATE

DISMISSAL

(Code Civ. Proc., § 473(b))

TENTATIVE RULING:

The Court

GRANTS Messeret Tenna's motion to vacate the court-ordered dismissal for failure to appear at trial on March 18, 2026.

The March

18, 2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473,
subdivision (c)(1)(A), the Court imposes a penalty of \$250.00 on Tenna's
counsel, payable to the Court within 30 days of this order.

The Court

further ORDERS Tenna to SHOW CAUSE, on Thursday, November 19, 2026 at 9:30 a.m.
in Department 25 of the Spring Street Courthouse, why default and a default
judgment have not yet been entered in this matter.

And the

Court ORDERS Tenna to SHOW CAUSE, on the same day and at the same time, why
Tenna's counsel should not be sanctioned \$250.00 for failing timely to secure a
default and default judgment in this action.

Tenna is to give notice.

SERVICE:

☒ [X]

Proof of Service Timely Filed (CRC, rule 3.1300) OK

☒ [X]

Correct Address (CCP §§ 1013, 1013a) OK

☒ [X]

16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None

filed as of September 11, 2026 ☐ []

Late ☒ [X] None

REPLY: None

filed as of September 11, 2026 ☐ [] Late ☒ [X]

None

ANALYSIS:

Messeret Tenna sued Annahshem Ramones for a motor vehicle cause of action. Tenna personally served Ramones in November 2025. Tenna did not file proof of service until February 2026 and did not obtain a default against Ramones.[1] Tenna's counsel then failed to appear for the March 18, 2026 non-jury trial, and the Court ordered Tenna's complaint dismissed without prejudice pursuant to Code of Civil Procedure section 581, subdivision (b)(3). Tenna now moves to have the dismissal vacated pursuant to Code of Civil Procedure section 473, subdivision (b)'s mandatory attorney-fault provision.

A motion pursuant to the mandatory relief provision of Code of Civil Procedure section 473, subdivision (b), must be (1) timely, (2) in proper form, and (3) accompanied by an attorney's sworn affidavit attesting to the attorney's mistake, inadvertence, surprise, or neglect. (Code Civ. Proc., § 473, subd. (b).) A court must grant relief if the party satisfies those requirements, unless the court finds that the default or dismissal was not actually caused by the attorney's fault. (Ibid.)

Tenna's motion, filed August 17, 2026, satisfies each of those requirements. Tenna's counsel declares that the failure to appear "was due to [his] calendaring and scheduling mistake and inadvertence." And while Tenna's motion is not accompanied by papers curing the lapse that led to the dismissal, Tenna's counsel represents to the Court that he will "work diligently to...submit and serve the Request for Entry of Default...within 30–45 days" after this hearing. The Court accepts that representation. (See *Carmel, Ltd. v. Tavoussi* (2009) 175 Cal.App.4th 393, 401–402; *Austin v. Los Angeles Unified School Dist.* (2016) 244 Cal.App.4th 918, 933.)

Accordingly, the Court GRANTS Tenna's motion. The March 18, 2026 dismissal is hereby SET ASIDE AND VACATED.

Pursuant to Code of Civil Procedure section 473, subdivision (c)(1)(A), the Court imposes a penalty of \$250.00 on Tenna's counsel, payable to the Court within 30 days of this order. The Court further ORDERS Tenna to SHOW CAUSE, on Thursday, November 19, 2026 at 9:30 a.m. in Department 25 of the Spring

Street Courthouse, why default and a default judgment have not yet been entered in this matter. And the Court ORDERS

Tenna to SHOW CAUSE, on the same day and at the same time, why Tenna's counsel should not be sanctioned \$250.00 for failing timely to secure a default and default judgment in this action.

Tenna is to give notice.

[1]

Tenna's counsel states that he failed to file proof of service, but proof of personal service on Ramones was filed on February 19, 2026.